DIRECTION

Doc Type	Form	**Issue Date**	1 September 2021
Doc. No.	SOP-APS-001	**Eff. Date**	1 September 2021
IP	Food Safety Agency (Pty) Ltd	**Rev. Date**	1 January 2023
Designed by	N Bergh	**Revision**	V5
Approved by	Chief Executive Officer		

Producer/Importer/Packhouse/Retailer Facility	Bergdale - Cape Town
Owner / Manager / Representative	Genevieve Botha
Physical Address	C2 Prime Park, Mocke Road, Diep River, Cape Town, 7800
E-Mail Address	qualitymanager@bergdale.co.za
Contact Number	0217069612
Date of Visit	25/08/2025
Nature of Inspection	Inspection
Direction Reference Number	Bergdale - Cape Town/186/25/08/2025/01

The products listed and described below and which have been marked or pointed out by me personally, are being sold / imported, are in contravention of Section 3 (1) of the Agricultural Production Standards Act, 1990(Act 119 of 1990), read in conjunction with the relevant regulations regarding the sale of products in terms of Section 15 of the Act.

☑ **DIRECTION:** You are hereby directed in terms of **Section 3A, (1) (b)** of the said Act to:

Rectify the non-conformity as mentioned below before or on **26/09/2025**

☐ **SEIZURE:** The owner or person in charge of the place, premise or conveyance failed to comply with the direction (Number: _____) issued in terms of section 3A (1)(b) of the said Act and thereby committing an offence in terms of section 11 (1)(d). The product is therefore seized by the Executive Officer: Agricultural Product Standards in terms of section 7 (1)(c) and 8 of the said Act with immediate effect.

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Nature of Direction: Marking Requirements / Container and Outer Containers

Rectify the non-conformity as mentioned below before or on: **26/09/2025**

DEVIATIONS (NON-CONFORMITIES)

Point	Product Name	Nature of Deviation from Regulation	Regulation Number
1	Bergdale/Sliced Hickory ham/125g	Scale Label - Additions to Product Name	[Reg. 8(2)(a)]
2	Bergdale/Sliced Hickory ham/125g	Scale Label - Country of Origin	[Reg. 8(2)(a) & 12]
3	Bergdale/Sliced Hickory ham/125g	Scale Label - Name & Telephone No. of manufacturer/packer/importer/seller/etc.	[Reg. 8(2)(b)]

Comments (if found)

1. Additions to the product name is incorrectly indicated. The trademark name shall not form part of the product name,the word 'PNP' shall not form part of the product name.
2. Country of origin is not indicated on the container.
3. The telephone number of the manufacturer/packer is not indicated on the container.

ACTIONS AND REMARK

REMARKS
Direction issued and discussed with Client

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Restricted Particulars (if found)

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SIGNATURES

INSPECTOR NAME:	KUTLWANO KUNTWANE	OWNER / AUTHORISED MANAGER:	Genevieve Botha
INSPECTOR SIGNATURE:		OWNER / AUTHORISED MANAGER SIGNATURE:	

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Please note:

The abattoir, production plant, retailer, processing or repacking or importer, can apply for dispensation with the Executive Officer: Agricultural Product Standards Act at the Department of Agriculture, Land Reform and Rural Development (DALRRD) previously the Department of Agriculture, Forestry and Fisheries (DAFF).